

LITIGATION FUNDING OPPORTUNITY

Proposed Rectification & Restitution Claim

Ty Mawr (Great House Farm), Llandough, Wales

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1. Opportunity Overview

We seek non-recourse litigation funding to investigate and, subject to Counsel's opinion, prosecute a potential high-value land rectification and restitution claim arising from events surrounding first registration in or around 1982 relating to Ty Mawr (Great House Farm), Llandough.

Preliminary forensic review identifies arguable issues concerning:

- Characterisation of possession prior to first registration.
- Absence of judicial determination of beneficial ownership.
- Identity inconsistencies in historic documentation.
- Potential “mistake” within the meaning of Schedule 4, Land Registration Act 2002.
- Possible consequential restitutionary exposure.

The matter is currently at pre-action investigative stage. No proceedings have yet been issued.

This is a high-risk, high-return Chancery matter suitable for specialist litigation capital.

2. Legal Basis Under Review

Primary statutory framework:

- Land Registration Act 2002 – Schedule 4 (Rectification for Mistake).
- Rectification principles where registration was obtained by mistake.
- Limitation and postponement analysis.
- Potential consequential restitutionary and unjust enrichment claims.

The core legal issue is whether the 1982 first registration event involved a mistake capable of rectification and whether consequential financial recovery follows.

Leading Chancery KC opinion has not yet been obtained and forms part of the funding requirement.

3. Indicative Quantum

Nine-Figure Range

Indicative Potential Gross Recovery — Full Rectification & Consequential Loss Scenarios

This is a modelling assumption only and requires expert valuation and merits confirmation. It does not represent a guarantee of recovery.

4. Funding Requirement

£750,000 – £1,500,000

Initial Capital Sought

Milestone-Based

Drawdown Structure

Use of proceeds:

1. Leading KC written opinion on merits and limitation.
2. Forensic Land Registry reconstruction.
3. Historic and current valuation evidence.
4. Pre-action protocol compliance.
5. Solvency and enforcement analysis.
6. ATE insurance exploration.

Indicative timeline:

0 – 90 days	Counsel opinion and Land Registry reconstruction
3 – 6 months	Pre-action protocol engagement
6 – 18 months	Proceedings (if advised)
3 – 6 years	Litigation horizon

5. Proposed Structure

Non-recourse litigation funding. Indicative return framework (negotiable):

- Priority return: **3× deployed capital** OR
- Percentage of net proceeds (up to 11% per partner).

Partners	Per Partner	Aggregate	Family Trust
Up to 3	Up to 11% of net proceeds	Max 33%	Min 67% retained

Security:

- Assignment of proceeds.
- Contractual waterfall.
- Reporting covenants.

Open to structured term sheet proposals.

6. Risk Profile

Material risks include:

- Limitation defence.
- Judicial reluctance to disturb historic registration.
- Evidentiary gaps due to passage of time.
- Adverse costs exposure.
- Proof threshold for “mistake” under LRA 2002.

This opportunity is suitable only for experienced litigation funders comfortable underwriting legal and evidentiary risk at an early stage.

7. Process

We invite expressions of interest from up to three funding partners.

1. NDA execution.
2. Data room access.
3. 7-day preliminary review window.
4. Indicative term sheet.
5. Investment committee decision.

This matter is time-sensitive due to evidentiary preservation concerns.

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